

HOUSE No. 3258

The Commonwealth of Massachusetts

PRESENTED BY:

Justin Thurber

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act to cap the amount by which a senior's property tax can increase.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Justin Thurber</i>	<i>5th Bristol</i>	<i>1/16/2025</i>
<i>Patrick Joseph Kearney</i>	<i>4th Plymouth</i>	<i>1/17/2025</i>
<i>John R. Gaskey</i>	<i>2nd Plymouth</i>	<i>1/17/2025</i>

HOUSE No. 3258

By Representative Thurber of Somerset, a petition (accompanied by bill, House, No. 3258) of Justin Thurber, Patrick Joseph Kearney and John R. Gaskey relative to property tax increases for seniors. Revenue.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act to cap the amount by which a senior's property tax can increase.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Chapter 59 of the General Laws, as most recently amended by section 3 of
2 chapter 50 of the acts of 2023, is hereby further amended by inserting after section 50 the
3 following new section:-

4 Section 5P. With respect to each parcel of real property classified as Class One,
5 residential, in each city or town certified by the commissioner to be assessing all property at its
6 full and fair cash valuation, and at the option of the board of selectmen or mayor, with the
7 approval of the city council or local legislative body, may require that for a person who has
8 reached his sixty-fifth birthday prior to the fiscal year for which the property is assessed and
9 occupied by said person as his domicile, or of a person who owns the same jointly with his
10 spouse, that the assessed tax value of such real property may not increase more than a maximum
11 of two and one-half per cent over the previous year's tax assessment. Such assessment under this
12 section shall be inclusive of any special local tax overrides or increases for the fiscal year. In

13 order to qualify for this section the taxpayer must have been domiciled in the commonwealth for
14 the preceding ten years and has so owned and occupied such real property in the commonwealth
15 for five years, prior to the assessment of taxes in the current tax year.